

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 1, 2023. The complaint is directed against ILUROBOX, S.L. with NIF B67030270 (hereinafter, the respondent).

In the complaint, the complainant states that they have been included, along with 150 other individuals, in a WhatsApp group through which the respondent sent communications. They assert that, although they had prior contact with the respondent, they never consented to receive such communications or to be part of any instant messaging group.

The complaint also provides the details of the respondent, including the website address: <https://www.boxmotorsport.com>. Within this website, the contact phone number through which the instant messaging group was created is listed.

Along with the complaint, the following documentation is submitted:

- A screenshot showing the option to register for the Robinson Lists service for the phone line ***PHONE.1, of which the complainant is the owner. However, it is not clearly deduced from this screenshot whether effective registration in this service has taken place.
- A screenshot showing the chat of a group named "****GROUP.1" created by a user named "****USER.1". In the comments of this chat, the surprise of several group participants is evident as they question the reason for the creation of this messaging group.
- A screenshot of the contact "****USER.1" showing the phone number ***PHONE.2, which corresponds to this contact.
- A screenshot showing a conversation via instant messaging between the complainant and the contact "****USER.1" related to the purchase and sale of vehicle wheels.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out by electronic notification in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/05/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; the forwarding was reiterated on 24/05/2023 by certified postal mail, which was again returned as "absent".

No response has been received to this forwarding letter.

THIRD: On June 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On November 2, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

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impose itself. Therefore, considering that the respondent party has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST.- The complainant has been included in a WhatsApp group along with other individuals, through which the respondent party sent communications. This fact is evidenced by the screenshot of the chat from the WhatsApp group named "****GROUP.1" created by a user named "****USER.1".

SECOND.- It is established that "****USER.1" is a contact of the complainant corresponding to the phone number ***PHONE.2. This fact is manifested in the screenshot of the contact that the complainant provided along with their submission.

THIRD.- The incorporation into the instant messaging group occurred without prior consent from the complainant and other participants in that group. This fact is deduced from the complainant's own statement asserting that they did not consent to any type of commercial communication. Furthermore, it is reaffirmed by the screenshots provided by the complainant, where the surprise of several participants is evident, as they question the reason for the creation of the group.

FOURTH.- In the privacy policy of the website of the respondent party indicated in the complaint, various information about the same is listed, including the contact phone number. This contact number matches the one that created the instant messaging group:

"Who are we?

Our name: ILUROBOX SL

Our CIF / NIF: B67030270

Our main activity: Mechanical workshop for the repair of vehicles and motorcycles

Our address: C/ Remences 26 local 1, CP 08304, Mataro (Barcelona)

Our contact phone: ***PHONE.2

Our contact email address: info@boxmotorsport.es

Our website: boxmotorsport.com

For your trust and security, we inform you that we are an entity registered in the following Commercial Registry/Public Registry:

We are at your disposal, do not hesitate to contact us."

FIFTH.- The existence of a prior conversation, via instant messaging, between the complainant and

the contact "****USER.1" related to the purchase and sale of vehicle wheels is confirmed. This is evident from the screenshot of part of that conversation provided by the complainant along with their submission.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached under Article 6.1 GDPR

Article 6 of the GDPR, relating to the principle of lawfulness of processing, provides in its first paragraph the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject."

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data subjects who require the protection of personal data, particularly when the data subject is a child. The provisions in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Therefore, for data processing to be considered lawful, in accordance with the provisions of the aforementioned article, there must be a legal basis that legitimizes it. In the case at hand, the documentation provided along with the complaint does not indicate the existence of any cause that legitimizes the processing of the personal data of the complaining party.

The aforementioned processing consisted of the inclusion of the complaining party along with other participants in an instant messaging group created by the responding party, which allowed all of them to view personal data of the others.

The action of adding certain contacts to an instant messaging group meets the characteristics required to be considered as processing of personal data in the terms established by Article 4 of the GDPR.

This article defines processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure or destruction."

The instant messaging application used was WhatsApp, an application that allows the creation of groups with various participants without their consent, and where they can also view the phone numbers of others, as well as their aliases and profile pictures. All this data is considered personal data in the terms established in Article 4 of the GDPR, which defines it as “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.” Such unlawful processing is deduced from the documentation provided by the complaining party, among which is a copy of part of the conversations from the aforementioned WhatsApp group. In this conversation, there is no indication of any consent from the complaining party, nor from other participants, who express their surprise at having been included in this group and their lack of knowledge regarding the reason for their inclusion. The creation of the messaging group, as evidenced by the copy of the conversation itself, was carried out by the phone number ***TELÉFONO.2, which had the alias “***USUARIO.1.” As indicated in the third proven fact, this phone number matches the contact number displayed on the website of the responding party.

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It is worth adding that, prior to the creation of the aforementioned WhatsApp group, another conversation took place through that same application between the respondent and the claimant, as evidenced by a copy of the WhatsApp conversation submitted along with the claim. However, the content of the conversation does not imply any consent or willingness on the part of the claimant to belong to any WhatsApp group of any nature. Similarly, the comments of surprise expressed in the conversation of the created group seem to indicate that the lack of consent is not limited solely to the claimant, but also extends to other participants.

Based on the above, it is deduced that the incorporation of the respondent into a WhatsApp group without their consent and without any other justifying cause constitutes an unlawful processing of personal data, which leads to a violation of the aforementioned Article 6.1 of the GDPR.

III

Classification and qualification of the infringement for non-compliance with Article 6.1 of the GDPR
The violation of Article 6.1 of the GDPR by the respondent constitutes an infringement as defined in Article 83.5 a) of the GDPR, which establishes that administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year will be imposed, opting for the higher amount:

“a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;”

For its part, the LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

Regarding the statute of limitations, according to Article 72 of the LOPDGDD, “the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

[...]

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...)

IV

Sanction for non-compliance with Article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article

for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j).

When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In this case, it is considered appropriate to grade the sanction to be imposed according to the following circumstances established in Article 83.2 of the GDPR, in the following terms:

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“a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;”

In the present case, the presence of the aforementioned aggravating factor is considered based on its scope, given that, as a result of the unlawful processing, at least other individuals who were part of the WhatsApp group have been able to access the personal data of the claimant, including phone numbers, profile pictures, and aliases when the contact is not saved, which implies a greater severity in the processing operation.

Taking into account the general conditions established by the aforementioned Article 83.5 of the GDPR, considering the circumstances of the present case and the concurrence of the mentioned circumstances, without prejudice to the outcome of the instruction of this procedure, it is deemed appropriate to set a possible sanction of a fine amounting to €3,000 (THREE THOUSAND EUROS).

V

Adoption of measures

In accordance with the provisions of the cited Article 58.2 d) of the GDPR, each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In the present case, the controller is required to notify this Agency within two months of the adoption of the following measure:

- The implementation of technical and organizational security measures that prevent the creation of messaging groups without consent that allow the disclosure of associated personal data of the participants, as well as the removal, in any open messaging group, of those participants who have not given prior consent to be part of it.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on ILUROBOX, S.L., with NIF B67030270, a fine of 3,000 euros (THREE THOUSAND EUROS) for a violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER ILUROBOX, S.L., with NIF B67030270, pursuant to Article 58.2.d) of the GDPR, to demonstrate compliance with the following measures within two months from the date this resolution becomes final and enforceable:

- The implementation of technical and organizational security measures that prevent the creation of messaging groups without consent that allow the disclosure of personal data associated with the participants, as well as the removal, from any open messaging group, of those participants who have not provided prior consent to be part of it.

THIRD: TO NOTIFY this resolution to ILUROBOX, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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